



Oxford Handbook of Online Intermediary Liability

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CHAPTER

27 From 'Notice and Takedown' to 'Notice and Stay Down': Risks and Safeguards for Freedom of Expression

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Abstract

Since the emergence of the internet industry, policymakers around the world have introduced limited liability regimes, which provide rightholders with enforcement mechanisms to call upon an internet intermediary directly to remedy a wrongdoing to which they believe they have been subject. These mechanisms go generally under the name of notice and action (N&A). This chapter describes the most commonly encountered N&A mechanisms around the world, namely 'notice and takedown' (NTD), 'notice and notice' (NN), and 'notice and stay down' (NSD). The analysis of each mechanism refers to specific national implementations. As all N&A mechanisms provide for the removal or blocking of content, each mechanism also constitutes a potential interference with the right to freedom of expression. The goal of this chapter is to examine how different types of N&A mechanisms amplify the risks to free expression and what safeguards they include to prevent such risks from manifesting themselves.

Keywords: enforcement, online intermediaries, notice and takedown, notice and notice, notice and stay down, freedom of expression

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SINCE the emergence of the internet industry, liability for user content has been considered a problematic issue. Providers of intermediary services, such as access providers and hosts, quickly became aware of the potentially high risks resulting from content liability.¹ In the light of the developing case law and a lack of harmonization, the young internet industry launched a plea for immunity for third party's content.² The plea did not go unanswered. Policymakers around the world introduced limited liability regimes consisting of two basic principles: (1) a lack of liability of intermediaries for third party content provided they do not modify that content and are not aware of its illegal character; and (2) the absence of a general obligation to monitor

content.³ Such immunity was meant to stimulate growth and innovation of the newly born technology and provide positive incentives for further development. Some regulatory instruments introduced an additional immunity condition, which requires intermediaries to act  expeditiously upon obtaining knowledge about illegal character of content. The resulting mechanism, commonly referred to as ‘notice and takedown’, provides rightholders with an opportunity to call upon an internet intermediary directly to remedy a wrongdoing they believe they have been subject to.

Limited liability regimes then gradually made their way into regulatory instruments at both the national and regional level. It could first be spotted in the US Digital Millennium Copyright Act (DMCA).⁴ In the EU, liability exemptions for internet intermediaries were incorporated in the e-Commerce Directive 2000/31, which was later implemented in all EU Member States.⁵

Despite the popular name, ‘notice and takedown’ is only one of a variety of mechanisms that can be taken by an intermediary. A more appropriate and generic term is ‘notice and action’ (N&A), which encompasses the variety of mechanisms designed to eliminate illegal or infringing content from the internet upon request of the rightholder.⁶ N&A is based on the relatively simple idea of a complaint mechanism that provides anyone who considers that their rights have been infringed (from the rightholder, third party, organization, etc.) with an easy way to seek relief. N&A is always initiated by way of a notice. The intermediary can respond to such a notice in a number of ways. It can react immediately by taking down or blocking access to content, or it can wait for a response from the content provider and react accordingly after hearing his defence. It can also act continuously against the content and any future infringements towards the same or merely similar content. The following sections describe the most commonly encountered notice–and–action mechanisms around the world, namely ‘notice and takedown’ (NTD), ‘notice and notice’ (NN), and ‘notice and stay down’ (NSD). The analysis of each mechanism refers to specific national implementations. As all N&A mechanisms provide for the removal or blocking of content, each mechanism also constitutes a potential interference with the right to freedom of expression. The goal of this chapter is to examine how different types of N&A mechanisms amplify the risks to free expression and what safeguards they include to prevent such risks from manifesting themselves. The reader should note that the analysis provided here is not exhaustive. Rather, it serves to give an indication of how the presence of safeguards and their implementation can impact the right to freedom of expression.

1. Impact on Freedom of Expression

Notice–and–action mechanisms are often driven by practical considerations, allowing for swift and effective relief, far quicker than the relief typically provided by the judiciary. By creating such a possibility, states provided an efficient, direct, and accessible form of redress mechanism.⁷ Responses to complaints, however, have a direct effect on the right to freedom of expression as they can lead to removal of content from the internet (or alternatively a reduction of its visibility). N&A mechanisms place intermediaries in a situation where they are essentially required to decide about competing rights and interests. This is obviously problematic because, as private companies, intermediaries are not qualified to replace courts of law in such an important task. This approach has often been described as an ‘inappropriate transfer of juridical authority to the private sector’.⁸

An aggravating factor is the fact that refusal to take down content puts the intermediaries at risk of being held liable. Obviously, the most cautionary approach is to act upon any indication of illegality, without engaging in any sophisticated balancing of rights in conflict. It is not surprising, therefore, that in many cases, investigations of the illicit character of the content and balancing of the rights at stake is minimal at best.⁹ This often leads to preventive overblocking of entirely legitimate content, or in other words, to ‘over-compliance’. Nevertheless, for reasons of practicality and efficiency, involvement of intermediaries in content regulation

seems inevitable. Involving intermediaries in making decisions as to whether or not content should be taken down is, in fact, ‘something that cannot practicably be forestalled, on pain of completely undermining the way the Internet operates’.¹⁰

If this is the case, however, sufficient safeguards to protect the right to freedom of expression must be put in place. Many existing N&A mechanisms attempt to do so by incorporating various safeguards in their procedures. Whether or not these safeguards function properly depends very much on how they are legally framed and implemented. The provided safeguards can either achieve their goal, or completely miss the point.

p. 528 For this reason, it is worth looking at a few of the most popular notice-and-action mechanisms ↵ and to examine how the different elements of their procedures impact freedom of expression and what safeguards they contain.

2. Notice and TakeDown

2.1 General

Notice and takedown (NTD) is a mechanism where an internet intermediary is called upon directly by a private entity (individual, company, rightholders organization, etc.) to remove or disable access to information in response to a breach of their rights (or of the law more generally). It is the intermediary’s task to assess whether such a complaint is credible and whether the content is in fact infringing or illegal. Based on this assessment, the intermediary must decide either to remove the disputed content or to keep it available. It is, therefore, a two-stage process where both rightholders and intermediaries are involved in the enforcement of rights on the internet.¹¹ When looking at specific national implementations of the NTD, it becomes clear that they all contain additional elements or formal conditions, which have a substantial effect on the right to freedom of expression in the content-removal process.

2.2 Variations of the Mechanism

Notice and takedown mechanisms can be found in regulatory instruments at both regional and national levels. The most well-known notice-and-takedown mechanism is included in the US DMCA. The procedure in the DMCA relates exclusively to copyright-infringing content. A crucial element of the DMCA is that it allows and expects internet intermediaries to disable access to material or activity claimed to be infringing as long as they act in good faith in response to a claim or based on facts or circumstances that the material or activity is infringing.¹²

In the EU, a notice-and-takedown mechanism is implied, but not directly provided, in Article 14 of the e-Commerce Directive 2000/31/EC. Under this provision, hosting providers can benefit from a liability exemption if they act expeditiously to remove or disable access to information upon obtaining knowledge about its illegal character. The provision applies to any kind of illegal or infringing content. In practice, however, NTD mechanisms are often introduced in sector-specific regulations, often addressing only one type of content.

p. 529 It is indicative that the majority of existing NTD mechanisms apply only to copyright infringements.¹³ Over time, some countries have broadened the reach of the provided mechanisms to other types of infringements.¹⁴ Hungary, for example, has extended the mechanism to cover the personal rights of minors in addition to copyright infringements.¹⁵ In 2017, Germany introduced a law requiring social media providers to remove manifestly unlawful content, for example hate speech, upon complaint—the NetzDG.¹⁶ South Korea provides two versions of the mechanism, one for copyright infringements and another applying to privacy-infringing content, defamatory content, or content otherwise violating the rights of others.¹⁷

Not all the countries, however, limit the scope of the NTD mechanism to a specific type of content. The NTD procedure implemented in France, for example, does not contain such delineation.¹⁸ Removal can be requested with regard to any content in violation of national law.¹⁹

p. 530 **2.3 Risks and Safeguards for Freedom of Expression**

2.3.1 Foreseeability

The level of detail in the legal frameworks that introduce notice-and-takedown mechanisms varies considerably. In the EU, the e-Commerce Directive provided no guidelines on how the mechanism should look but left it to the discretion of the Member States.²⁰ To this day, a significant number of countries have no specific legal framework for content removal but rely on general rules of law instead. Only a few EU countries opted for the opportunity provided by Article 14(3) of the Directive to introduce more detailed measures, most notably Finland, France, Hungary, Lithuania, Sweden, and partially the UK.²¹

Countries that further codified NTD mechanisms into their national law, both in the EU and beyond, describe the relevant procedures in detail. For example, they specify the time frames for different actions in the procedure and the formal requirements for a valid notice.²² Rules regulating the latter are particularly relevant because the validity of notice often determines the existence of actual knowledge, which is necessary to decide on the service provider's liability.²³ The importance of a legal framework specifying detailed NTD procedures should not be underestimated. It improves foreseeability and legal certainty, as all stakeholders can easily inform themselves on what behaviour is expected of them, and when.

2.3.2 Abusive requests

Interferences with freedom of expression can also stem from abusive takedown requests. Certain NTD procedures include provisions aimed to discourage abusive notifications by introducing penalties for misrepresentations. Examples can be found in the United States, which takes a strict approach with penalties of perjury, and Finland, with a more lenient approach limited to compensation for damage.²⁴

p. 531 Penalties for misrepresentations in a notice, as implemented in the United States, are not a successful deterrent against abusive notices.²⁵ Complaints against notification senders are rarely successful, although there are some notable exemptions to this trend.²⁶ Perhaps the most famous example is the 'Dancing Baby' case.²⁷ The Ninth Circuit Court of Appeals ruled, after ten years of litigation, that copyright owners must at least consider fair use before they issue the DMCA takedown request.²⁸

The Finnish provision regarding misrepresentations is more light-handed in its approach. A person who gives false information in the notification or in the plea with objection will be liable to compensate for the damage caused.²⁹ However, there is no liability to compensate or it may be adjusted if the notifying party had reasonable grounds to assume that the information was correct or if the false information was only of minor significance, when taking into account the entire content of the notification or the plea.

2.3.3 Notification and counter-notification

Due process and effective remedy are essential to the protection of fundamental rights. One way to introduce elements of due process is by requiring a notification to the content provider, to inform him of a complaint made against 'his' content. According to the DMCA, the service provider should take reasonable steps to promptly notify the content provider that it has removed or disabled access to content.³⁰ Similarly, in Finland and in Hungary when the challenged content is taken offline the host must notify the content provider.³¹ In Finland, additionally, the notification must state the reason for removal and provide information on the right to appeal in a court, within fourteen days of receipt of the notification. By informing the content provider of the charges against him, the notifications bring the element of the right to a fair hearing into the process. The existing procedures allow, moreover, for a certain form of appeal, through objection or counter-notification.³² The possibility of a counter-notification allows the parties to respond to the complaint and put forward a defence for their use of the content. Counter-notifications must usually meet specified requirements and time frames. They are resolved by the hosting providers, who can effectively put the content back online. In Hungary, the service provider is required to expeditiously make the relevant information accessible again upon receiving an objection. In the United States, content is ↵ reinstated, but no earlier than in ten days and no later than fourteen days, unless the service provider receives notice that the rightholder took the case to court.³³

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Research on the NTD mechanism of the DMCA has revealed that its counter-notice mechanism is rarely used in practice.³⁴ The reason for this is that the content provider has to state, under penalty of perjury, that he has a good faith belief that the material was removed or disabled as a result of a mistake or misidentification.³⁵ The process, in consequence, is intimidating to individual users responding without the benefit of legal counsel. As pointed out by Bridy and Keller, 'the cost of error for a user if she is mistaken about her copyright defenses is much higher than the cost of error for a copyright owner who is mistaken about her claims'.³⁶ As a result, while counter-notification in the DMCA is visible and concrete, it is perceived as being a 'largely symbolic acknowledgment of the importance of users' expressive rights'.³⁷

3. Notice and Notice

3.1 General

Under a notice-and-notice mechanism (NN), an intermediary receives a notification with a complaint, which he then forwards to the content provider.³⁸ The notification to the content provider serves the purpose of a warning. The content provider is given an opportunity to correct his behaviour, which halts the procedure, or to defend it within a provided time limit, which may lead to further actions (notifications or sanctions). The notice-and-notice mechanism is a variation of notice and takedown. The main difference is that the remedy to the potential wrongdoing is not taken immediately but is spread over time. Usually, there are several notifications (warnings) to the content provider before the final response is delivered. The goal of this mechanism is to educate users and to deter them from wrongdoings by demonstrating that they cannot hide from detection.³⁹ It is meant to persuade users to look for legal alternatives, for example to obtain legally purchased music.⁴⁰

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Several variations of the notice-and-notice mechanism exist, varying in how the conflict escalates or in the final outcome. The variations include, for example, notice and ↵ notice leading to a judicial takedown and notice wait and takedown.⁴¹ Other responses might involve the suspension and termination of service, capping of bandwidth, blocking of sites, portals, and protocols.⁴² In the most extreme form, the content provider is disconnected from the internet after the final warning has been issued. This version of the mechanism is known as graduated response or the 'three-strikes-and-you're-out' approach, although the number of strikes might differ.⁴³ Administration of the responses may be entrusted to an internet service provider (ISP), an

administrative authority, or a court of law, depending on the country. Examples of NN mechanisms can be found in Canada, Chile, and South Korea.⁴⁴ Also the NN in France, which pioneered the approach in the HADOPI Act, deserves attention.⁴⁵

3.2 Variations of the Mechanism

p. 534 Each of the provided examples of NN mechanisms applies solely to copyright infringements. It is interesting that a mechanism where the response is not provided in one definitive step is preferred for copyright infringements. In France, initially, it was also applicable to situations when a user failed to properly secure his internet connection, creating a possibility for somebody else to commit a copyright infringement using his network. The law was criticized for not clearly defining the ‘sufficient security measures’ it required. In July 2013, the French Ministry of Culture issued a decree lifting the penalty of internet access suspension for those who failed to secure access to their network.⁴⁶

The NN mechanism exists in many variations.⁴⁷ Canada took a light-handed approach whereby intermediaries are only required to forward the notice, while Chile opted for a moderate version where any decisions to take down or suspend an account are taken by the courts.⁴⁸ South Korea chose a stricter version, where NN can lead to user account suspension (but not to the suspension of an email account).⁴⁹ The most severe approach was taken in France, going all the way to internet disconnection with prohibition to subscribe to a new ISP.

3.3 Risks and Safeguards for Freedom of Expression

3.3.1 Foreseeability

p. 535 The examples of NN mechanisms mentioned earlier describe the relevant procedures in some detail. Yet, they are not entirely free from issues regarding interpretation and application. For example, in Canada notices have to be forwarded by the intermediary to the content provider. The rules describe what information the notice must contain but there are no restrictions limiting the content of the notice. This has allowed copyright holders to add information designed to intimidate users in order to demand settlements.⁵⁰ Intermediaries, even if aware of the false claims, cannot refuse to forward the notice. Users who receive such notices are often confused about their rights and obligations.⁵¹ A system which allows misleading people about their situation can hardly pass as foreseeable. Such ‘education through fear’, which is currently a result of the missing restrictions, has been criticized by many, who urge the government to review the rules.⁵²

The French law introducing the graduated response started with a firm idea of what it wanted to achieve and how. Over time, however, the law has grown weaker due to (justified) complaints about its constitutionality and respect for human rights. Already at the beginning of its existence, the law received a severe cool-down by the Conseil constitutionnel, which declared that the power to suspend internet access could not be exercised by an administrative body as it constituted a disproportionate restriction on the freedom of expression and an unacceptable presumption of culpability.⁵³ Later, the penalty of suspending access to the internet was lifted due to heavy criticism. From a severe enforcement tool, the law was reduced to a mere ‘pedagogical’ system.⁵⁴ It eventually became clear that the HADOPI Act was not sufficiently foreseeable, neither for French internet users nor for the French legislator.

3.3.2 Decision-making bodies

Entrusting removal decisions to courts can increase the level of procedural fairness, and as a result, the legitimacy of the NN procedure. It also improves the quality of the decisions as they are made by bodies competent to resolve conflicts. This option was chosen in Canada and Chile. In Canada, the intermediary is not obliged to take down the content without a court order, but only to assist the copyright holder in exercising the rights against the primary infringer. The only tasks of the ISPs are to forward the complaint and to retain records to be presented in court and to identify the infringer.⁵⁵ In Chile, a court order is required to compel blocking or removal of infringing content.⁵⁶ The approach shifts the task of evaluating notices from intermediaries to courts.⁵⁷ Still, these two countries added other elements of due process in their procedures, such as the forwarding of notifications to the content provider and the possibility to issue counter-notifications.⁵⁸ Both these steps strengthen the fairness of the procedure by introducing elements of the right to a fair hearing, adversarial proceedings, and equality of arms. Court involvement, moreover, ensures compliance with the right to an effective remedy, as the right to appeal is generally available when the decisions are made directly by the courts.

p. 536 In countries where the decisions are made by public administration, the lack of due process is one of the main recurring criticisms. This is the case, for example, in South Korea where the procedure is handled by the executive branch of the government and the decisions are not reviewed by the courts.⁵⁹ This makes the process non-transparent and vulnerable to arbitrary decision-making. South Korea provides an opportunity for intermediaries and users to present their opinion in advance of fulfilling the order, but it is not clear if the opinion is actually considered an appeal and whether it leads to a proper review.⁶⁰ The South Korean NN mechanism provides for additional safeguards, including notification to the content provider. Their presence, however, does little to improve the opaque decision-making process and the absence of an effective remedy through judicial review.

In France, the lack of judicial redress was one of the main reasons why the original HADOPI Act was challenged and eventually watered down significantly. The initial procedure contained elements introducing a certain amount of due process. For example, the first warning had to inform the user about his right to request further clarification regarding the charges.⁶¹ The second warning gave the user a possibility to respond and defend his behaviour.⁶² In the last phase, the user was able to challenge the decision in front of a judge. Nevertheless, the Conseil constitutionnel ruled that the law allowed for disproportionate interference with the right to freedom of expression and an unacceptable presumption of guilt.⁶³ The court effectively took away the power of the HADOPI agency to sanction users and confirmed that this type of punishment must be administered under judicial control.⁶⁴ The law was supplemented with the 'HADOPI 2' Act,⁶⁵ which gave the competence to the criminal court.⁶⁶ Procedures that concentrate all the decision-making power exclusively with administrative authorities are generally problematic from the perspective of the right to an effective remedy.⁶⁷

3.3.3 Severity of the response

p. 537 The severity of existing NN mechanisms differs widely, from a light slap on the wrist to full-on disconnection from the internet. It is interesting to observe that, despite ↴ such varying degrees of severity, each version is considered as an appropriate and proportionate response to copyright infringements in the respective country.

In France, the NN mechanism took the most extreme form. When it was first introduced, the new law gave the HADOPI agency power to issue sanctions in the form of fines and temporary suspensions of internet connection. The latter penalty was strengthened with a prohibition to subscribe to any other ISP for the period of the punishment. The period of suspension could range from three months to one year.⁶⁸ Between 2010 and 2017, the law led to more than 2,000 referrals to prosecutors and 189 criminal convictions.⁶⁹ Initially, disconnection was also foreseen as a sanction for not securing one's internet connection, which was used for copyright infringements by others. The latter penalty was eventually abolished by the Ministry of Culture.⁷⁰ As

a result of low effectiveness and recurring constitutional struggles, the law is considered to have failed to achieve its goals.⁷¹ With the intended severe response, France opted for the most restrictive measures available. Due to continuous doubts about its constitutionality, proportionality, and effectiveness, however, the law was gradually reduced to a mere shadow of its former self.

The measures foreseen by the Korean legislation are also quite severe. After three warnings, the minister may order suspension of an account or a website for up to six months.⁷² The suspension does not apply to email accounts but includes other accounts given by the relevant online service provider.⁷³ Unlike in France, the sanction is not a complete exile from the internet but it clearly creates an obstacle to the exercise of the right to freedom of expression and access to information. The disconnection measure, moreover, does not appear to be proportionate to the harm caused. Most of the suspended users are minor offenders.⁷⁴ Half of those suspended were involved in infringement of content that would cost less than 90 US cents.⁷⁵ This is in stark contrast to the intention of the law, which is supposedly aimed at ‘heavy uploaders’.⁷⁶ The measure was also not very successful in curbing online piracy.⁷⁷ As more users were suspended, the amount of detected infringements was constantly increasing.⁷⁸ Considering the low effectiveness of the approach, together with the widespread levity of the offences, it is hard to consider the mechanism as proportionate.

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4. Notice and Stay Down

4.1 General

Under a notice-and-stay-down (NSD) mechanism, the intermediary receives a notification about illegal or infringing character of hosted content, similar to NTD. In this case, however, the intermediary is required not only to remove the information, but also to take additional measures to ensure that it is not subsequently reposted, either by the same user or by other users.⁷⁹ The identification of recurring postings of content previously notified as unlawful requires the implementation of systems that monitor all user-submitted information. Such systems can take the form of manual human supervision or automated systems.⁸⁰ In both cases, however, the intermediaries must filter the entirety of content to detect a reposting of once-removed content.⁸¹ The mechanism, therefore, requires mandatory filtering initiated by the first notification.⁸²

Notice and stay down goes further than ‘traditional’ notice and takedown. This is because a submitted notice not only concerns a one-time infringement, but starts an ongoing obligation on the side of the intermediary to prevent the same infringement from occurring in the future. It could, however, go even further and require prevention not only of the same but also similar infringements. The NSD mechanism, until recently, has not been provided by any law but has resulted from an extensive interpretation of the same provisions that constitute the basis of a NTD mechanism. Existing instances of NSD mechanisms can therefore be found in case law, rather than in the law on the books. Most instances of NSD involved intellectual property infringements.

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The situation has changed recently. The new Directive on copyright in the Digital Single Market (DSM)⁸³ targets a category of online intermediaries which includes most user-generated content platforms. According to the Directive, to avoid liability for infringing materials uploaded by users on their networks, the online intermediaries must not only act ‘expeditiously, upon receiving a sufficiently substantiated notice from the rightholders, to disable access to, or to remove from their websites, the notified works’ but also make ‘best efforts to prevent their future uploads’ (emphasis added). Effectively, the Directive introduced an NSD mechanism in EU law although it remains to be seen how the Directive will be implemented in national legislations.

4.2 Judicial Construct

Before the very recent legislative development, NSD has been primarily a judicial construct. The most prominent example of a judicial NSD mechanism can be found in the Court of Justice of the European Union (CJEU)'s *eBay* case, dealing with trade mark infringement on the online marketplace eBay. The CJEU stated that injunctions ex Article 11 of the Enforcement Directive can be issued not only to take measures that contribute to bringing to an end to infringements, but also to preventing further infringements.⁸⁴ However, the prevention of further infringements cannot be achieved through active monitoring of all the data of each of the users of an online intermediary.⁸⁵ According to the CJEU, an online intermediary can be ordered to suspend the perpetrator of an IP infringement in order to prevent (1) further infringements of that kind (2) by the same seller (3) in respect of the same trade marks.⁸⁶

p. 540 Among national attempts at creating NSD arrangement,⁸⁷ a relevant application of NSD has been endorsed by the German jurisprudence. The German Federal Supreme Court introduced an NSD mechanism in its *Internetversteigerung I* judgment.⁸⁸ The mechanism was achieved through a special notion of 'disturbance liability' (Störerhaftung), which is applied in the online context to hold hosting providers liable for third party illegal content, irrespective of their liability in tort.⁸⁹ The mechanism requires that the host blocks any 'clear infringements' which are pointed out in a notification.⁹⁰ The disturber liability, furthermore, involves the duty to review (monitor) content to prevent future infringements. Interestingly, the duty does not apply only to identical copies of the content, or to copies uploaded by the same users.⁹¹ On the contrary, the duty extends to all following infringing acts of a similar nature that are easily recognizable.⁹² In short, the infringements must be 'similar in their core' (the 'Kerntheorie').⁹³

4.3 Risks and Safeguards for Freedom of Expression

4.3.1 General v specific monitoring

The NSD mechanism is not a commonly used mechanism. The main reason is that most laws on intermediary liability, for example the e-Commerce Directive in its Article 15, prevents states from introducing general monitoring obligations.⁹⁴ An obligation to prevent re-uploads means that a service provider must constantly monitor all uploads to catch future infringements.⁹⁵ An obligation of this sort has been rejected by the CJEU. Next to the afore-mentioned *eBay* case, the CJEU addressed the issue in *Scarlet Extended* and *Netlog*. In the latter rulings, the CJEU declared that the filtering of all electronic communications applied indiscriminately to all users as a preventive measure, at the expense of the intermediary and for an unlimited period of time, should be understood as general, and therefore not permitted by the Directive.⁹⁶ The Court explained that preventive monitoring of this kind would require active observation of almost all files stored by almost all users of the hosting service provider.⁹⁷ In the more recent 2016 *McFadden* ruling, which concerned access providers, the CJEU declared that monitoring all of the information transmitted, as a measure, 'must be excluded from the outset as contrary to Article 15(1) of Directive 2000/31'.⁹⁸

p. 541 In Germany, courts and many scholars believe that an obligation to detect future infringements that are not only the same but merely similar does not constitute a general monitoring obligation, but a specific one, which is allowed by the e-Commerce Directive.⁹⁹ The opinion seems to stem from an alternative understanding of the difference between the purpose of the monitoring (detecting specific infringements) and the subject of the monitoring (entirety of the content) to achieve that purpose. The CJEU's rulings in *Scarlet Extended*, *Netlog*, and *McFadden* did not convince German courts that what they administer would qualify, on many occasions, as general monitoring. This inconsistency and possible incompatibility with Article 15 of the e-Commerce Directive raises legitimate questions about the compatibility of the NSD mechanism with the original principles of the intermediary liability regimes. The newly adopted Directive on copyright in the DSM seem to follow the German line. In Article 17, the Directive requires online intermediaries to make best efforts to

prevent future uploads of the notified works, in accordance with high industry standards of professional diligence. The Directive stipulates that the application of Article 17 'shall not lead to *any general monitoring obligation*' (emphasis added). It is hard to imagine, however, in what other way service providers can ensure copyrighted works are not re-uploaded. To effectively recognize infringing content, a technological tool must be used to systematically monitor the entirety of the uploaded users' content.¹⁰⁰

4.3.2 Clear and precise notifications

The key characteristic of NSD is that an intermediary, once notified about the infringing content, must continuously monitor its platform to prevent reoccurrence of the infringement. Until the adoption of the Directive on copyright in the DSM, the NSD was interpreted in a way that required the future infringements to be 'clear'. However, these clear infringements may not only apply to other works of the same kind by the same user but also to other works of similar types infringed by a different user (if the service is particularly susceptible to infringements).

As the Bundesgerichtshof acknowledged in *Blog-Eintrag*, it is not always possible for the hosting provider to immediately recognize whether an infringement has taken place.¹⁰¹ Accordingly, a host provider is required to act only if the notice he received is sufficiently specific. The notice must enable identification of the infringement without excessive difficulty; that is, without an in-depth legal and factual review.¹⁰² It is interesting, however, that the original notification has to be detailed enough to indicate an infringement without the need for a thorough legal and factual examination, yet the host is required to recognize future infringements of other works of the same or even a different kind himself, without any new notification. It is not obvious how the strict interpretation of the notification requirements by the German courts is consistent with the subsequent obligation to remove future undefined infringements.¹⁰³ Moreover, such a task will clearly require detailed legal and factual analyses to avoid overbroad removals. Such an application of the NSD mechanism does not properly reflect the nuances of copyright law, which foresees possibilities of the same content having different legal statuses when posted by different users, or the fact that the status of content changes over time. These aspects of the NSD mechanism will inevitably play a role in upcoming discussions on the implementation of the Directive on copyrights in the DSM. It remains to be seen what form the newly introduced NSD will take.

4.3.3 Appeal procedure

Existence of a redress mechanism, for example an appeal procedure, can greatly improve the legitimacy of an N&A mechanism. The newly adopted Directive on copyright in the DSM provides in Article 17(9) that online content-sharing service providers put in place an effective and expeditious complaint and redress mechanism available to their users in case of any disputes regarding the uploaded content. Moreover, out-of-court redress mechanisms should be available for the settlement of disputes but without depriving the users of access to efficient judicial remedies. In particular, users should 'have access to a court or another relevant judicial authority to assert the use of an exception or limitation to copyright and related rights'. The provision of the new Directive sounds reasonable but its effect in practice is yet to be seen. In the meantime, useful lessons on redress mechanisms can be learnt from the currently functioning NSD mechanisms.

The currently existing NSD mechanism has a one positive aspect, namely, that it is administered by courts of law. This ensures that due process rights are respected. Moreover, the fact that any order to remove current and future infringing content requires a court decision means, in theory, that judicial redress is possible. Nevertheless, an obligation to detect and prevent future infringements creates several issues that currently go unaddressed. Despite the fact that the mechanism is administered by courts, the only parties that get to express their opinion are the plaintiffs (rightsholders) and the intermediaries. The content providers do not take part in the process. They have, therefore, no say in the process that will effectively impact their rights by

restricting their expression. The reason is that the *Störerhaftung* doctrine is a procedure aimed only at third parties who have not themselves committed an infringement, but who facilitate it, and are able to provide relief. It is a separate procedure from any proceedings against the actual wrongdoer. Moreover, providers of any future infringing content will have no possibility to appeal the decisions. The views of the reposting individuals are at no point taken into account when deciding about removals of the reposted content. In their case, the decision will be made by the intermediary and not by the court. There is no judicial oversight for decisions made regarding future infringements. If the intermediary makes a wrong assessment, for example when the content has changed its status, content providers of the future infringing content have limited chances to exercise their right to an effective remedy.

5. Conclusions

All over the world, different types of notice-and-action mechanisms are used to regulate online content. The variations range from classic notice and takedown to far-reaching notice and stay down. Countries that choose to introduce a specific mechanism typically also introduce detailed procedures that often contain a number of formal conditions or other requirements. The requirements are related to different stages of the procedure, for example at the moment of filing a notice or later in the appeal. Undoubtedly, they influence the final outcome of the process by either amplifying or preventing excessive interference with the right to freedom of expression. If the requirements are properly defined and followed, they can act as important safeguards. Their actual effect, however, may vary tremendously, depending on the form they take and accompanying restrictions. This can be seen in the example of counter-notifications and penalties for misrepresentations. Too strict an approach, as it turns out, may convert a reasonable due process element into an insignificant measure without much meaning. The same can be said about appeal procedures. If judicial redress is possible, the legitimacy and quality of the decision-making process increases. If the appeal procedure is limited to filing an objection to a public authority, the remedy may not be effective in practice.

Involving intermediaries in content regulation may be inevitable. The legal framework, on which it is based, however, should ensure a certain quality of the law. Only then will a notice and action provide an effective but proportionate and balanced redress mechanism. In particular, the legal framework governing notice-and-action mechanisms should be clear and foreseeable in order to advance legal certainty. Moreover, it should ensure proportionality of the response and availability of an effective remedy, preferably administered by courts. These objectives can be achieved by introducing safeguards designed to ensure the effective exercise of the right to freedom of expression. Examples of what safeguards are needed, as well as how to implement them (and how not to implement them) in practice, can be found in multiple national jurisdictions around the world. It is therefore worth looking at the various national experiences as evidence-based illustrations of potential improvements.

Notes

- 1 See Organization for Economic Co-operation and Development (OECD), Directorate for Science, Technology and Industry, Committee for Information, Computer and Communication Policy, 'The Role of Internet Intermediaries In Advancing Public Policy Objectives, Forging partnerships for advancing public policy objectives for the Internet economy', Part II (22 June 2011) 11.
- 2 *ibid.* 11.
- 3 *ibid.* 6.
- 4 See the Digital Millennium Copyright Act of 1998, 17 USC § 512 (US).
- 5 See Directive 2000/31/EC of the European Parliament and the Council of 8 June 2000 on certain legal aspects of information society services, in particular electronic commerce, in the Internal Market [2000] OJ L178/1 (e-Commerce

- Directive).
- 6 See more in European Commission Communication, 'Communication to the European Parliament, The Council, The Economic and Social Committee and The Committee of Regions, A coherent framework for building trust in the Digital Single Market for e-commerce and online services' SEC(2011) 1640 final, 13, fn. 49.
 - 7 See also Jaani Riordan, *The Liability of Internet Intermediaries* (OUP 2016) 64.
 - 8 European Commission, 'Summary of the results of the Public Consultation on the future of electronic commerce in the Internal Market and the implementation of the Directive on electronic commerce (2000/31/EC)' 12 <http://ec.europa.eu/internal_market/consultations/docs/2010/ecommerce/summary_report_en.pdf>.
 - 9 See discussion in Christian Ahlert, Chris Marsden, and Chester Yung, 'How Liberty Disappeared from Cyberspace: the Mystery Shopper Tests Internet Content Self-Regulation' (2014) <<http://pcmlp.socleg.ox.ac.uk/wp-content/uploads/2014/12/liberty.pdf>>.
 - 10 Marcelo Thompson, 'Beyond Gatekeeping: The Normative Responsibility of Internet Intermediaries' (2016) 18(4) Vand. J. of Entertainment & Tech. L. 793.
 - 11 See Martin Husovec, 'The Promises of Algorithmic Copyright Enforcement: Takedown or Staydown? Which is Superior? And Why?' (2018) 42 Colum. J. of L. & Arts 53 <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3239040>.
 - 12 See DMCA (n. 4) s. 512 (g)(1).
 - 13 See *ibid.* s. 512. In Finland, the NTD procedure described in the Information Society Code applies specifically to content infringing copyright or neighbouring rights. See Tietoyhteiskuntakaari [The Finnish Information Society Code] no. 917 of 7 November 2014, entered into force on 1 January 2015, ch. 22 (Fin.) <<http://www.finlex.fi/en/laki/kaannokset/2014/en20140917.pdf>>. In Hungary, see Act CVIII of 2001 on certain issues of electronic commerce services and information society services, promulgated on 24 December, 2001, Art. 13(1) (Hun.) <http://www.neuronit.com/documents/108_2001_el_comm:torv_20070502.pdf>. In South Korea, see Copyright Act amended by Act no. 9625 of 22 April 2009; Act no. 10807 of 30 June 2011; Act no. 11110 of 2 December 2011, Act no. 14083 of 22 March 2016; Act no. 14634 of 21 March 2017 (Kor.) <http://elaw.klri.re.kr/kor_service/lawView.do?hseq=25455&lang=ENG>.
 - 14 South Korea provides another type of NTD, for types of content-infringing rights other than copyright, in the Act on Promotion of Information and Communications Network Utilization and Information Protection, last amended by Act no. 11322 of 17 February 2012 (Kor.) <http://elaw.klri.re.kr/kor_service/lawView.do?hseq=25446&lang=ENG> (hereafter ICNA, Information and Communications Network Act).
 - 15 The Hungarian NTD procedure foresees two procedures: (1) 'hard' notice and takedown for intellectual property rights and trade mark infringements; and (2) 'soft' notice and action for infringements of personal rights of minors. 'Hard' NTD requires content deletion without assessing whether the request is justifiable or not. 'Soft' N&A allows the intermediary to examine the request and disregard those that he considers unjustified. See Gábor Csiszér, Ministry of National Development, 'Presentation of Hungary concerning national legislative approach to notice and action' (EC Expert group on electronic commerce, 27 April 2017) E01636.
 - 16 See the 2017 Network Enforcement Act (Gesetz zur Verbesserung der Rechtsdurchsetzung in sozialen Netzwerken, NetzDG) (Ger.). See also Aleksandra Kuczerawy, 'Phantom Safeguards? Analysis of the German law on hate speech NetzDG' (*KU Leuven CiTiP Blog*, 30 November 2017) <<https://www.law.kuleuven.be/citip/blog/phantom-safeguards-analysis-of-the-german-law-on-hate-speech-netzdg/>>.
 - 17 See ICNA, Information and Communications Network Act (n. 14).
 - 18 See loi no. 2004-575 du 21 juin 2004 pour la confiance dans l'économie numérique (Fr.) <http://www.wipo.int/wipolex/en/text.jsp?file_id=276258> (hereafter LCEN). Currently France is discussing a possible new law (the so-called 'Avia Bill') targeting hate speech. See more in 'Article 19, France: Analysis of draft hate speech bill' (3 July 2019) <<https://www.article19.org/resources/france-analysis-of-draft-hate-speech-bill/>>.
 - 19 See Swiss Institute of Comparative Law (SICL), *Comparative Study on Filtering, Blocking and Take-Down of Illegal Content on the Internet—France Country Report*, report commissioned by the Council of Europe (20 December 2015) 244.
 - 20 See Directive 2000/31/EC (n. 5) recital 46.
 - 21 See Thibault Verbiest and others, 'Study on the Liability of Internet Intermediaries' (12 November 2007) Markt/2006/09/E; Patrick Van Eecke and Maarten Truyens, 'EU Study on the Legal Analysis of A Single Market for the Information Society—New Rules for a New Age?, Legal analysis of a Single Market', study commissioned by the European Commission's Information Society and Media Directorate-General (November 2009); SICL (n. 19) 797.
 - 22 See, in Finland, Information Society Code (n. 13) s. 191; in France, LCEN (n. 18) art. 6-I-5; in Hungary, Act CVIII (n. 13) Art. 13(2).
 - 23 See Verbiest and others (n. 21) 14 and 41.
 - 24 See DMCA (n. 4) s. 512(f); Information Society Code (n. 13) s. 194.
 - 25 See Wendy Seltzer, 'Free Speech Unmoored in Copyright's Safe Harbor: Chilling Effects of the DMCA on the First

- Amendment' (2010) 24(1) Harv. J. of L. & Tech. 178. See also Jennifer Urban, Joe Karaganis, and Brianna Schofield, 'Notice and Takedown in Everyday Practice', UC Berkeley Public Law Research Paper no. 2755628 (2017) 42 <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2755628>.
- 26 See *Online Policy Group v Diebold Inc.*, 337 F.Supp.2d 1195 (ND Cal. 2004) (US) (granting plaintiff's claim); and *Rossi v Motion Picture Assoc. of Am.*, 391 F.3d 1000 (9th Cir. 2004) (US) (dismissing plaintiff's claim). In 2017, a claim under s. 512(f) of the DMCA survived a motion to dismiss. This, however, rarely happens and the claimant still faces a long way to reach a favourable judgment. See *Johnson v New Destiny Christian Center Church*, 2017 WL 3682357 (MD Fla. 2017) (US). See also Eric Goldman, 'Section 512(f) Complaint Survives Motion to Dismiss—Johnson v. New Destiny Church' (*Tech & Markt Law Blog*, 30 August 2017) <<http://blog.ericgoldman.org/archives/2017/08/section-512f-complaint-survives-motion-to-dismiss-johnson-v-new-destiny-church.htm>>.
- 27 See *Lenz v Universal Music Corp.*, 801 F.3d 1126 (9th Cir. 2015) (US).
- 28 See Marc Randazza, 'Lenz v. Universal: A Call to Reform Section 512(f) of the DMCA and to Strengthen Fair Use' (2016) 18(3) Vand. J. of Entertainment & Tech. L. 103.
- 29 See Information Society Code (n. 13) s. 194.
- 30 See DMCA (n. 4) s. 512(g)(2)(A).
- 31 See Information Society Code (n. 13) s. 187; and Act CVIII (n. 13) Art. 13(4).
- 32 DMCA (n. 4) s. 512 (g)(B); Information Society Code (n. 13) s. 193; Act CVIII (n. 13) Art. 13(6).
- 33 DMCA (n. 4) s. 512(g)(2)(c).
- 34 See Jennifer Urban and Laura Quilter, 'Efficient Process or "Chilling Effects"? Takedown Notices Under Section 512 of the Digital Millennium Copyright Act' (2006) 22 Santa Clara Computer and High Tech. L.J. 621, 625; Urban, Karaganis, and Schofield (n. 25) 42.
- 35 See DMCA (n. 4) s. 512(g)(3)(C).
- 36 Annemarie Bridy and Daphne Keller, 'U.S. Copyright Office Section 512 Study: Comments in Response to Notice of Inquiry', SSRN Research Paper no. 2920871 (31 March 2016) 29 <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2920871>.
- 37 *ibid.* 30.
- 38 See OECD (n. 1) 57.
- 39 *ibid.* 29.
- 40 *ibid.*
- 41 See Christina Angelopoulos and Stijn Smet, 'Notice-and-Fair-Balance: How to Reach a Compromise Between Fundamental Rights in European Intermediary Liability' (2016) 8(2) J. of Media L. 266, 294–300.
- 42 See Peter Yu, 'The Graduated Response' (2010) 62 Florida L. Rev. 1373, 1374.
- 43 See *ibid.* In February 2013, Motion Picture Association of America (MPAA) and five major US internet service providers launched a 'six strikes' Copyright Alert system to deal with online copyright infringements. See Jyoti Panday and others, 'Jurisdictional Analysis: Comparative Study of Intermediary Liability Regimes Chile, Canada, India, South Korea, UK and USA in support of the Manila Principles On Intermediary Liability' (1 July 2015) 15 <https://www.eff.org/files/2015/07/08/manila_principles_jurisdictional_analysis.pdf>. See also Joel Hruska, "'Six Strikes' Programs from ISPs & MPAA Ignites in Nine Days: Here's What You Need to Know' (*Extreme Tech*, 19 November 2012) <<http://www.extremetech.com/internet/140774-six-strikesprograms-from-isps-mpaa-ignites-in-nine-days-heres-what-you-need-to-know>>.
- 44 See Copyright Modernization Act of 2012, c. 20 (Can.) <http://laws-lois.justice.gc.ca/eng/annualstatutes/2012_20/page-1.html> (hereafter CMA); Ley no. 20.435, modifica la Ley no. 17.336 sobre propiedad intelectual [Law no. 20.435, amending Intellectual Property Law enacted on 4 May] (Col.) 2010 <<https://www.leychile.cl/Navegar?idNorma=1012827&idParte=&idVersion=2010-05-04>>. In South Korea graduated response is provided by the Copyright Act, Arts 133-2 and 133-3. The mechanism functions in addition to the NTD procedures for copyright and other types of infringing content (hereafter LPI).
- 45 See loi no. 2009-669 du 12 juin 2009 favorisant la diffusion et la protection de la création sur internet [Law no. 2009-669 of 12 June 2009, promoting the dissemination and protection of creative works on the internet] (HADOPI Act) (Fr.) <http://www.wipo.int/wipolex/en/text.jsp?file_id=179252>.
- 46 See Décret no. 2013-596 du 8 juillet 2013 supprimant la peine contraventionnelle complémentaire de suspension de l'accès à un service de communication au public en ligne et relatif aux modalités de transmission des informations prévue à l'Article L 331-21 du code de la propriété intellectuelle [Decree no. 2013-596 of 8 July 2013 abolishing the additional complementary penalty of the suspension of the access to an online public communication service and relating to the modalities of transmission of information provided for in article L 331-21 of the Intellectual Property Code] (Fr.).
- 47 This chapter focuses on mechanism provided by legislation. For a mechanism developed through jurisprudence, see the landmark case of *Belén Rodríguez v Google and Yahoo!* decided by the Argentinian Supreme Court. The case involved violation of copyright, reputation, and privacy rights. The Supreme Court ruled that judicial review is required for issuing a

- notice to take down content—except in a few cases of ‘gross and manifest harm’. See Corte Suprema de Justicia de la Nación [National Supreme Court] *Rodríguez, María Belén v Google Inc./daños y perjuicios* [2014] CSJN Case no. 337:1174 (Arg.). See also Chapter 26; Giancarlo Frosio, ‘The Death of “No Monitoring Obligations”: A Story of Untameable Monsters’ (2017) 8 JIPITEC 199, 206–7.
- 48 See Alberto Cerda Silva, ‘Cyber Law in Chile’ in *International Encyclopaedia of Laws* (Kluwer Law Int’l 2017) 131. CDT, ‘Chile’s Notice-and-Takedown System for Copyright Protection: an Alternative Approach’ (CDT, August 2012) 2 <<https://cdt.org/files/pdfs/Chile-notice-takedown.pdf>>.
- 49 See Copyright Act (n. 13) Art. 133-2(2).
- 50 See Michael Geist, ‘Misuse of Canada’s Copyright Notice System Continues: U.S. Firm Sending Thousands of Notices With Settlement Demands’ (*Michael Geist Blog*, 5 March 2015) <<http://www.michaelgeist.ca/2015/03/misuse-canadas-copyright-notice-system-continues-u-s-firm-sending-thousands-notices-settlement-demands/>>.
- 51 See Sophia Harris, ‘“Feels Like Blackmail”: Canada Needs to Take a Hard Look at Its Piracy Notice System’ (*CBC*, 2 November 2016) <<http://www.cbc.ca/news/business/copyright-infringement-notice-canada-piracy-1.3831492>>.
- 52 *ibid.* See also Sophia Harris, ‘U.S. Cancels Internet Piracy Notices While Canadians Still Get Notices Demanding Settlement Fees’ (*CBC*, 1 February 2017) <<http://www.cbc.ca/news/business/notice-system-piracy-copyright-internet-1.3960462>>.
- 53 See Conseil constitutionnel [Constitutional Court], décision no. 2009-580 DC du 10 juin 2009 [case no. 2009-580 DC of 10 July 2009] (Fr.) as referenced by Christina Angelopoulos, *European Intermediary Liability in Copyright: A Tort-Based Analysis* (Kluwer Law Int’l 2016) 148.
- 54 See Simon Columbus, ‘France to Disconnect First Internet Users under Three Strikes Regime’ (*Opennet*, 27 July 2017) <<https://opennet.net/blog/2011/07/france-disconnect-first-internet-users-under-three-strikes-regime>>.
- 55 See CMA (n. 44) Art. 41.26(1).
- 56 See CDT (n. 48) 2.
- 57 *ibid.* 5.
- 58 See CMA (n. 44) Art. 41.26(1); LPI (n. 44) Art. 85 U. However, the content provider in Chile has an opportunity to respond to the notice when conflict reaches the court. See also Cerda Silva (n. 48) 131.
- 59 The Minister of Culture, Sports and Tourism (MCST) has the power to order service providers to issue warnings to infringers and websites hosting infringing content and to order them to cease transmission or to delete infringing material. If the infringement continues after three warnings, the minister may order the service provider to suspend an account of the infringer or a website for up to six months. Copyright Act (n. 13) Art 133-2 (Orders, etc. for Deletion of Illegal Reproductions, etc. through Information and Communications Network).
- 60 See Copyright Act (n. 13) Art. 133-2(7).
- 61 See HADOPI Act (n. 45) arts L 335-7 and L 335-7-1.
- 62 See Primavera de Filippi and Daniele Bourcier, ‘Three-Strikes Response to Copyright Infringement: The Case of HADOPI’ in Francesca Musiani and others (eds), *The Turn to Infrastructure in Internet Governance* (Palgrave-Macmillan 2016) 134.
- 63 See Conseil constitutionnel (n. 53).
- 64 See de Filippi and Bourcier (n. 62) 135.
- 65 See loi no. 2009-1311 du 28 octobre 2009 relative à la protection pénale de la propriété littéraire et artistique (HADOPI 2) (Fr.).
- 66 See de Filippi and Bourcier (n. 62) 141.
- 67 See Chapter 30.
- 68 See de Filippi and Bourcier (n. 62) 134.
- 69 ‘Seven Years of Hadopi: Nine Million Piracy Warnings, 189 Convictions’ (*Torrentfreak*, 1 December 2017) <<https://torrentfreak.com/seven-years-of-hadopi-nine-million-piracy-warnings-189-convictions-171201/>>.
- 70 By 2013, the law had resulted in conviction and a fifteen-day suspension of exactly one individual who, moreover, insisted that he did not commit the infringement. See Columbus (n. 54).
- 71 See Pierre Lescure, ‘Mission “Acte II de l’exception culturelle”—Contribution aux politiques culturelles à l’ère numérique’ (May 2013). See also ‘Seven Years of Hadopi: Nine Million Piracy Warnings, 189 Convictions’ (n. 69).
- 72 See Copyright Act (n. 13) Art. 133-2(2).
- 73 *ibid.*
- 74 See Centre for Law and Democracy, ‘Analysis of the Korean Copyright Act’ (June 2013) 6 <<http://www.law-democracy.org/live/wp-content/uploads/2013/06/Korea.Copyright.pdf>>. See also Paul Resnikoff, ‘Three Strikes: A Complete & Total Failure In South Korea ...’ (*Digital Music News*, 1 April 2013) <<https://www.digitalmusicnews.com/2013/04/01/effkorea/>>; ‘Facts and Figures on Copyright Three-Strike Rule in Korea’ (*Heesob’s IP Blog*, 24 October 2010) <<http://hurips.blogspot.be/2010/10/facts-and-figures-on-copyright-three.html>>.
- 75 See Danny O’Brien and Maira Sutton, ‘Korean Lawmakers and Human Rights Experts Challenge Three Strikes Law’ (*EFF*, 29 March 2013) <<https://www.eff.org/deeplinks/2013/03/korea-stands-against-three-strikes>>.

76 See 'Copyright Reform—Abolishing Three-Strikes-Out Rule from Copyright Law' <<https://opennet.or.kr/copyright-reform>>.

77 See O'Brien and Sutton (n. 75).

78 See 'South Korea Sees Fewer Crackdowns on Copyright Infringement: Report' (*Yonhap News Agency*, 13 August 2011) <<http://english.yonhapnews.co.kr/national/2011/08/13/43/0302000000AEN20110813001100315F.HTML>>.

79 See Angelopoulos and Smet (n. 41) 288.

80 *ibid.*

81 See Elliot Harmon, "'Notice-and-Stay-Down' Is Really 'Filter-Everything'" (*EFF*, 21 January 2016) <<https://www.eff.org/deeplinks/2016/01/notice-and-stay-down-really-filter-everything>>.

82 See Martin Husovec, 'Accountable, Not Liable: Injunctions Against Intermediaries', TILEC Discussion Paper no. 2016-012 (2016) 70 <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2773768>.

83 See Directive 2019/790/EU of the European Parliament and the Council of 17 April 2019 on copyright and related rights in the Digital Single Market and amending Directives 96/9/EC and 2001/29/EC [2019] OJ L130/92, Art. 17.

84 See C-324/09 *L'Oréal SA and Others v eBay International AG and Others* [2011] ECLI:EU:C:2011:474, para. 144. See Chapter 28.

85 *ibid.* para. 139.

86 *ibid.* para. 141. See also C-494/15 *Tommy Hilfiger Licensing LLC v Delta Center as* [2016] ECLI:EU:C:2016:528.

87 For a brief time, it also operated in France, but it was rather quickly brought to an end by the Cour de cassation. See Cour de cassation [Supreme Court] *La société Google France v la société Bach films (L'affaire Clearstream)* [12 July 2012] decision no. 831, 11-13669 (Fr); Cour de cassation *La société Google France v La société Bac films (Les dissimulateurs)* [12 July 2012] decision no. 828, 11-13666 (Fr); Cour de cassation *La société Google France v. André Rau (Auféminin)* [12 July 2012] 11-15.165; 11-15.188 (Fr.).

88 BGH *Internetversteigerung I* [2004] I ZR 304/01 (Ger.).

89 See SICL (n. 19) 261.

90 See Husovec (n. 11) 10.

91 See Joachim Bornkamm, 'E-Commerce Directive vs. IP Rights Enforcement—Legal Balance Achieved?' [2007] GRUR Int. 642.

92 *ibid.*

93 Matthias Leistner, 'Störerhaftung und mittelbare Schutzrechtsverletzung' [2010] GRUR-Beil 1 as referenced by Angelopoulos (n. 53) 154. For a new take on equivalent content, in the context of defamatory statements, see C-18/18 *Eva Glawischnig-Piesczek v Facebook Ireland Ltd* [2019] ECLI:EU:C:2019:821.

94 This argument was decisive in ending the NSD mechanism in France.

95 See CDT, 'Cases Wrestle with Role of Online Intermediaries in Fighting Copyright Infringement' (*CDT*, 26 June 2012) <<https://cdt.org/insight/cases-wrestle-with-role-of-online-intermediaries-in-fighting-copyright-infringement/>>.

96 See C-70/10 *Scarlet Extended SA v Société belge des auteurs, compositeurs et éditeurs SCRL (SABAM)* [2011] ECLI:EU:C:2011:771 and C-360/10 *Belgische Vereniging van Auteurs, Componisten en Uitgevers CVBA (SABAM) v Netlog NV* [2012] ECLI:EU:C:2012:85.

97 *ibid.* para. 37.

98 C-484/14 *Tobias Mc Fadden v Sony Music Entertainment Germany GmbH* [2016] ECLI:EU:C:2016:689, para. 87.

99 See Joachim Nordemann, 'Liability for Copyright Infringements on the Internet: Host Providers (Content Providers)—The German Approach' (2011) 2(1) JIPITEC 42.

100 See Aleksandra Kuczerawy, 'EU Proposal for a Directive on Copyright in the Digital Single Market: Compatibility of Article 13 with the EU Intermediary Liability Regime' in Bilyana Petkova and Tuomas Ojanen (eds), *Fundamental Rights Protection Online: The Future Regulation of Intermediaries* (Edward Elgar, forthcoming 2020).

101 See Bundesgerichtshof [Supreme Court] (BGH) *Blog-Eintrag* [25 October 2011] I ZR 93/10 (Ger.).

102 See Angelopoulos (n. 52) 154.

103 *ibid.*